

103	Vronkova vs. PHH Mortgage Services 25-01506227	Demurrer to First Amended Complaint is continued to 10/27/2026 at 10:00 AM Moving party to give notice.
104	Kohlman vs. Adaptive Behavior Center, Inc 24-01449191	Demurrer to Cross-Complaint Cross-Defendant Adaptive Behavior Center, Inc. (“Cross-Defendant”) demurs to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief, and sixth cause of action for negligence as alleged in the Cross-Complaint filed by Cross-Complainant Delight House Inc. on 03/23/2026. Cross-Complainant/Defendant Delight House, Inc. opposed the demurrer. A complaint, with certain exceptions, needs only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “However, ‘ “[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.”’ (Ibid.) “No error or defect in a pleading is to be regarded unless it affects substantial rights.” (Harris v. City of